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SLIGHTLY MORE THAN TWO CHEERS FOR SNEAKY PRIVATE INVESTIGATIONS INTO QUESTIONABLE BUSINESS OPERATIONS

ABSTRACT

Journalists and interest groups often investigate, more or less clandestinely, the business practices of a particular corporate enterprise. Their aim in doing so is to document and graphically publicize illegal or controversial practices. How the criminal and civil law should respond to such undercover investigations is the focus of the inquiry herein. Ultimately, three full-throated cheers for such private-party investigations are excessive. The investigations in question may, in some cases, run up against limits set by valuable personal privacy rights. A mere two cheers response, however, is insufficient. The free-speech-related and other public interest value of such investigations is collectively too great for only two cheers. Two and a half cheers may then seem an apt accommodation of the conflicting interests at stake. Ultimately, though, a slight muting of the two and a half cheers is endorsed. This final adjustment is strategically intended to encourage investigators to minimize any unnecessary harms caused by their valuable investigation and reporting in the public interest.

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I. INTRODUCTION

Journalists and interest groups often investigate, more or less clandestinely, the business practices of particular corporate enterprises. Their aim in doing so is *642 to document and graphically publicize illegal or controversial practices. How the criminal and civil law should respond to such undercover investigations is the focus of the inquiry below.

Ultimately, three full-throated cheers for such private-party investigations are excessive. The investigations in question may, in some cases, run up against limits set by valuable personal privacy rights. A mere two-cheers response, however, is insufficient. The free-speech-related and other public interest value of such investigations is collectively too great for only two cheers. Two and a half cheers may then seem an apt accommodation for the conflicting interests at stake. Herein though, a slight muting of the two and a half cheers is endorsed. This final adjustment is strategically intended to encourage investigators to minimize any unnecessary harm caused by their valuable investigation and reporting in the public interest.

II. THE VALUABLE EXEMPLARY CASE OF *PETA V. NORTH CAROLINA FARM BUREAU*

Many of the most important issues bearing upon appropriate limitations on investigative journalism were recently raised in the case of *People for the Ethical Treatment of Animals, Inc. v. North Carolina Farm Bureau Federation, Inc. (PETA)*.¹

The Fourth Circuit majority opinion in *PETA* was authored by Senior Judge Henry Floyd.² Judge Albert Diaz joined Senior Judge Floyd's opinion.³ Judge Allison Jones Rushing wrote a dissenting opinion.⁴ This Article will consider herein some of the key issues raised in *PETA* and in the cases upon which the *PETA* opinions rely.⁵

***643** The crucial statute at issue in *PETA* was the North Carolina Property Protection Act.⁶ At a general level, this statute criminalizes the act of any person who “intentionally gains access to the nonpublic areas of another's premises and engages in an act that exceeds the person's authority to enter.”⁷ Almost equally vague, the statute forbids “substantially interfer[ing] with the ownership or possession of real property.”⁸ Somewhat more concretely, the statute prohibits “capturing, removing, or photographing employer data--but only when the employee uses the data ‘to breach the person's duty of loyalty to the employer.’”⁹

To the extent these provisions address either generally indefensible behavior or non-investigative journalistic or interest group behavior, this Article has no interest in critiquing them. Such behaviors might include a range of activities including “stealing sensitive client information” or “ferreting out trade secrets in hopes of starting a competing business.”¹⁰ Ordinary sorts of vandalism, rivalry-based destruction, theft, unfair competition, sabotage, or conspicuous distraction and such, are outside the scope of this Article's concerns.

In contrast, PETA's interest was, and has elsewhere been, in conducting and then appropriately publicizing--for the sake of legal reform--the results of undercover investigations of business enterprises.¹¹ These investigations would often involve discussions with business employees making duplicate records of documents found in nonpublic areas of businesses and conducting surveillance of business enterprises.¹²

***644** The Fourth Circuit first determined that PETA's activities, including the development, formulation, and dissemination of investigative results, could not be dismissed simply as falling within some traditionally recognized, general category of constitutionally unprotected speech.¹³ That is, speech that takes place on nonpublic areas of another person's property is not akin to speech involving, say, fraud, kidnap ransom notes, check forgery, true threats, obscenity, or a limited number of other traditionally recognized categorical exceptions to free speech protection.¹⁴

But even if PETA's speech somehow fell within some traditionally proscribable general category of speech, this would, importantly, not yet doom PETA's free speech defense.¹⁵ Under the logic of *R.A.V. v. City of St. Paul*, governments do not have a free hand in criminalizing particular subcategories of speech even within a broader generally proscribable category.¹⁶ The proscribability of an entire category of speech does not also legitimize the prohibition of any selected subset of speech within that category.¹⁷ The “greater” category of speech in this context does not always include the supposed “lesser” category. By loose analogy, a government can prohibit all high volume, public loudspeaker speech after midnight,¹⁸ but that broad power would not authorize the government to prohibit, say, high volume, public loudspeaker speech after midnight only by Democrats, but not by Republicans.¹⁹

The court in *PETA* thus declared that the North Carolina statute in question, even if generally permissible, could not then “discriminate based on speaker and viewpoint.”²⁰ Thus, “[a]ssuming North Carolina can punish all unauthorized recording or capture of documents, it cannot punish only unauthorized recording ***645** or capture of documents done with the intent to breach the duty of loyalty or cause damage to the facility.”²¹

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Whether the North Carolina statute thereby singles out either a particular subclass of speakers or one or more distinct and cognizable viewpoints is actually more dubious, but less important than what either party or the court would likely recognize.²² Ultimately, the case for reasonably accommodating any substantial free speech interests at stake in investigative journalism cases need not depend on such contested inquiries.²³ The genuine free speech interests at stake in the cases may vary, as may the gravity of any competing personal privacy or vital property interests.²⁴

The *PETA* court majority then acknowledged that the press is not exempt from generally applicable laws.²⁵ Reporters cannot violate traffic speed limits in pursuit of a breaking story.²⁶ More broadly, the press is subject to general antitrust law,²⁷ general tax law,²⁸ and the law of criminal subpoenas.²⁹ But the court in *PETA* noted that such principles do not authorize criminal prosecutions because of the speech in question or its message, nor does the targeting of the speech in question authorize a criminal prosecution.³⁰ Thus, no one can, generally, engage in a breach of the peace.³¹ But some speakers in breach of the peace cases can still raise, *646 perhaps successfully, a First Amendment claim.³² Similarly, while the intentional infliction of emotional distress is generally prohibitible, defendants in such civil tort cases can sometimes successfully raise free speech defenses to such claims.³³

The court then acknowledged that attempts to gather information, or the actual successful gathering thereof, is strictly not yet speech nor the dissemination of information.³⁴ As a matter of logic, neither thinking a thought nor trying mentally to construct a politically significant argument has yet amounted to actual speech--at least to any other separate audience. A law forbidding a person's access to all unapproved sources of information would, technically, not prevent that person from saying whatever they wish, based on whatever information or experiences they had already acquired.³⁵ The mere act of physically delivering a traditional book manuscript to a publisher may well not, in itself, amount to speech in the constitutional sense.³⁶ And certainly, not every activity necessary for thinking one's thoughts, or physically processing or delivering them for possible later publication, counts as speech in the relevant sense.

But as the *PETA* court sensibly recognized, there must be no impermeable wall of separation between speech itself and one or more acts preparatory to the actual overt expression of speech.³⁷ Speech, particularly speech that is of any broadly held public interest, does not arise spontaneously, as though from a vacuum. A legal rule that prohibited rough drafts (or mere preliminary notes) for later delivery as a polished political speech, would plainly violate the logic of free speech law.³⁸

*647 It may be unduly broad and misleading to go so far as to claim the “‘creation’ of information demands as much protection as its ‘dissemination’”; but certainly, effective censorship can aim at the creation, as well as at the actual dissemination or discussion, of speech.³⁹ As the *PETA* court recognized, taking freedom of speech seriously requires attention to the “‘upstream” production process of any eventual actual speech.⁴⁰

Equally reasonably, the *PETA* court then recognized the role of investigative--including undercover--journalism in developing credible, vivid, concrete, preserved, memorable, precise, accurate, fully-documented, and trustworthy speech.⁴¹ Consider, on the one hand, the mere verbal claims as to an employer's illegal, unsafe, or unhealthy, business practices as made by an investigative journalist; and then consider, in contrast, the impact of such claims when amply supported by preserved images of any relevant documents, along with extensive edited and unedited audio and video evidence. The practical differences with respect to promoting the public interest, meaningful discussion, and sound public policy may well be substantial.⁴²

Of course, a more vivid journalistic impact may, in some cases, simply worsen the undeserved harm to a blameless business enterprise and to the public interest. The more vivid a false or misleading impression, whether created intentionally or not, the greater the defamatory effects, the cost of damage control *648 to innocent parties, the security costs, and the likelihood of the bankruptcy of such innocent parties.⁴³

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Worse, we notoriously live in an era of intense hyperpolarization on many public issues and of diminished, and further diminishing, public trust.⁴⁴ Technologically, the low-cost production of “deep fake”⁴⁵ images, which can be indistinguishable from authentic images, is by now well-advanced.⁴⁶ Utterly unscrupulous, or merely negligent, propaganda is thereby incentivized.⁴⁷ The idea of objective journalism, entirely free of conscious or unconscious biases of various sorts,⁴⁸ is merely a possible ideal--approachable in practice only to one degree or another.⁴⁹

All such concerns should be fully considered and properly addressed by the law. However, a sensible legal approach will also not misjudge the proper scope and constitutional value of reasonably well-conducted investigative journalism of privately-owned business enterprises. Not all such investigative speech is, for example, even remotely libelous.⁵⁰ At least some such speech addresses, clearly and directly, matters of proper and substantial public interest and concern,⁵¹ and is *649 thus, speech of the highest and most protection-worthy value.⁵² Speech on matters of public interest and concern, not coincidentally, tends to most strongly promote basic social values, including the search for truth,⁵³ meaningful representative democratic government,⁵⁴ and the broader self-realization and flourishing of the human personality.⁵⁵ Plainly, reasonably responsible investigative journalism can distinctively serve each of these values, each of which is fundamental to the polity and to its members.⁵⁶

On this basis, the *PETA* majority determined three things: the North Carolina statute in question would be properly subject to strict judicial scrutiny; the statute would then generally fail strict scrutiny; and, indeed, the statute would have failed with an intermediate scrutiny test, largely on the grounds of insufficient tailoring of the regulations to the nature of the genuine state interests at stake.⁵⁷

Of special interest, for this Article's purposes, is the North Carolina statute's focus on property rights and on questions of privacy and the invasion thereof.⁵⁸ Certainly, questions of free speech and free press, and of any limits of rights to property and privacy, are inseparable.⁵⁹ They are worthy of extended treatment. Examination of the nature of such values and their conflicts are below.⁶⁰

*650 For the moment though, it can be said that one of the most substantive of the employer's rights in a *PETA*-like context is the duty of loyalty employees owe to the employer-property owner.⁶¹ It is fair to say that all employees, whether undercover or not, owe such a duty of a prima facie or qualified sort. It might be said--more dramatically--that employees should not prima facie betray their employer or the most vital of interests of their employer. However, this duty plainly has limits, including avoiding any criminal conspiracy, complicity, obstruction of justice, accomplice liability, and joint tort commission.⁶²

The natures of loyalty and betrayal in *PETA*-like contexts actually require more serious reflection than the courts typically engage in.⁶³ An employer's desires and commands may clearly run contrary, not only to law or public policy, but to that employer's own genuine or expressed interests, including the most vital long-term corporate or personal interests.⁶⁴ More generally, if there were no basic conflicts between a person's present desires and their interests, undeniable questions of the justifiability of paternalism would simply not arise.⁶⁵

It is thus certainly possible for an employee to violate the desires, or the commands, of the employer in ways that substantially promote the interests-- *651 especially the most vital, long-term interests--of the employer.⁶⁶ This is true whether the employer's interests are thought of in terms of profitability, public image, corporate survival and longevity, or legal compliance.⁶⁷ On the other hand, it is also possible to substantively violate one's duty of loyalty to one's employer by speaking or acting in full compliance with the employer's desires.⁶⁸

Such consequences, illustrate the familiar warning that we should be careful what we wish for: King Midas, for example, genuinely desired that everything he touched should turn to gold.⁶⁹ A genie granting an employer's wish for immortality may disregard the employer's unexpressed desire that their immortality also be healthful and enjoyable. More generally speaking,

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loyalty in the superficial sense of carrying out an employer's requirements may predictably have adverse, or even disastrous, consequences for that employer.⁷⁰ Such possibilities are reflected in the familiar view that legal or moral rights, in general, are matters of the interests of the rights holder, as much or more so than of the will or expressed desires of the rights holder.⁷¹ Presumably, the employer-property owners in the cases discussed throughout this Article do not generally wish their employees to disregard or violate that employer's genuine, crucial long-term interests.

On the specific question of the employer's privacy interests, it is noteworthy that there are dramatic differences among different kinds of claimed privacy interests. Someone might choose to say, for example, that taking a video of animals being mistreated in nonpublic areas of a business violates the employer's privacy interests. Or one might argue taking a photograph of unjustifiable chemical treating *652 and relabeling of expired beef in a nonpublic area of a business is a violation of the employer's privacy. Similarly, recording the deliberate miscalibration of measuring instruments at a business might also be a violation of an employer's privacy. Although these examples of alleged privacy invasions would be without the employer's consent, the employer's underlying actions are illegal or objectionably harmful.⁷²

In contrast though, one can also imagine other, more meaningful and intimate privacy invasions. Consider an undercover investigation that reveals the identities of innocent third-party clients of a business, focuses entirely on the physical person and bodily movements of a corporate employer, invades the employer's personal home or living space with no public policy interest at stake, and other gratuitous intrusions of personal intimacy of the employer.⁷³

Both of these above sets of scenarios may be claimed by an employer to involve employer property interests and the violation of, at least, prima facie privacy rights.⁷⁴ But in cases in which speech on important matters of public interest are at stake, the differences in the nature and weight of the two sorts of alleged privacy interests above are obvious. Of course, there will inevitably be borderline cases. For example, the public interest may well be furthered by credible documentation of the gross abuse of migrants, farm workers, institutionalized children, persons who are mentally disabled, and other classes of persons.⁷⁵ But even in such cases, the intimate personal privacy of those underlying victims-- *653 rather than any privacy claim of the employer or supervising authority--may be protected by pseudonyms, technological image blurring, and voice alteration.⁷⁶

More broadly, in *PETA*, Judge Rushing dissented;⁷⁷ her dissent emphasized the distinction between the public and nonpublic areas of the business in question.⁷⁸ Assuming this distinction is, or can be made, sufficiently clear, the fundamental problem with this emphasis by Judge Rushing is that the justifiability of restrictions on property rights, the scope and limits of important privacy rights, and the crucial free speech distinction between matters of public and mere personal interest do not begin to track the distinction between public and nonpublic areas of business enterprises.⁷⁹

Nor, in particular, do the legal harms or benefits of any form of property trespass track such a distinction.⁸⁰ The duty of loyalty to one's employer, as unpacked above,⁸¹ is often indeterminate in its implications for the sensible resolution of investigative journalism cases.⁸² As well, reasonable and responsibly conducted undercover journalism need not interfere in any substantial way with the employer's appropriately exercised rights of ownership.⁸³ In effect, Judge Rushing's dissenting opinion settles little, but helps set the stage for crucial inquiries into the scope and limits of rights of property, personal privacy, speech, and the press.⁸⁴ This Article further pursues these issues immediately below.

***654 III. DO THE PROPERTY AND PRIVACY RIGHTS OF BUSINESS OWNERS POSE A SUBSTANTIAL BARRIER TO LEGITIMATE PRIVATE INVESTIGATORS?**

The legal right to exclude others from entering or remaining on one's property, perhaps with a variety of qualifications, is thought to be fundamental.⁸⁵ At the extreme, private, nongovernmental property may amount to "that sole and despotic dominion which one man claims and exercises over the external things of the world, in total exclusion of the right of any other individual in the universe."⁸⁶

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On the other hand, some sensible and readily enforceable restrictions on the use and control of nongovernmental land seems fully compatible with meaningful real property ownership.⁸⁷ Ultimately, some “system of property rights is necessary for human happiness,” but human happiness may require limits on business property rights.⁸⁸

Properly allocated, legitimate property rights may well serve human happiness, human interests, human fulfillment, and other basic human values.⁸⁹ The courts have embraced this sensible understanding.⁹⁰ Thus, the courts appreciate that “[p]roperty rights serve human values. They are recognized to that end, and are limited by it.”⁹¹ The purposive, human-value-serving nature of optimal property rights distributions not only animates those rights, but authorizes their ***655** application--along with their apt restriction--and their subordination for the sake of either happiness or other conflicting values.⁹² Property owners, no less than responsible investigative journalists, and the democratic public more broadly, have a range of important, but potentially limitable, autonomy interests.⁹³

The proper limits of property law thus cannot be established by focusing entirely on an employer's, or anyone else's, autonomy interests.⁹⁴ Other important values are at stake as well.⁹⁵ As one prominent theorist has observed, “[p]roperty law is designed to spread freedom,⁹⁶ opportunity, security, and wealth.”⁹⁷ Negatively formulated, property law “is also designed to prevent owners from inflicting harm on others and from acting in a manner that is incompatible with norms of propriety.”⁹⁸ These recognitions, however, must eventually be clarified, concretized, and contextually refined.⁹⁹ Notions of “human values” or “human dignity,” however vital, are hardly self-defining or self-applying.¹⁰⁰ These tasks must be judicially addressed, both generally and in our investigational cases, as they arise.

It is certainly possible to develop the basic elements of a sensibly balanced, and otherwise defensible, theory of property right limitations for cases of responsible investigative journalism. And it is similarly possible to develop notions of privacy rights and interests, and their limits, that seem appropriate in investigative journalism contexts as well.

There is certainly a broad range and variety of privacy interests,¹⁰¹ as variously addressed in distinct privacy-protected tort and crime contexts.¹⁰² The complications of the very idea of privacy, of a moral or legal right thereto, and of ***656** the proper limits thereof, are undeniable.¹⁰³ For present purposes, however, a range of entirely mainstream understandings of privacy and its reasonable limitations will suffice.

Often, the focus of privacy concerns is on the body and its control, including by whom the body is observed or otherwise experienced.¹⁰⁴ The idea of intimacy, and the control thereover, is often closely related.¹⁰⁵ Respect for one's status as a person may well be fundamental.¹⁰⁶ Along these lines, it has been argued that “[t]he right to privacy ... protects the individual's interest in becoming, being, and remaining a person.”¹⁰⁷

In particular, one may choose to think of privacy as the condition of “not having undocumented personal information about oneself known by others.”¹⁰⁸ On any reasonable view, privacy for our purposes typically relates “to those sensitive areas of personal life in which we are presumed to have a justifiable controlling stake.”¹⁰⁹ More elaborately, privacy refers to protection from the nonconsensual “gaze, observation, or study of others,” as well as from “intrusions into one's ***657** seclusion, solitude, or private affairs,” or related infringements upon one's personal dignity.¹¹⁰

Sometimes, limits are built not only into the right of privacy, but into the very idea of privacy itself.¹¹¹ And even where one recognizes a privacy right that seems justifiable in principle, there are occasions when such a right is outweighed or outranked by other rights, or by public or private interests.¹¹² Among any number of such clear instances, spousal abuse that is committed entirely within the intimate sanctum of the marital bedroom should hardly be protected by the privacy rights of the abuser.¹¹³

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More generally, privacy, and any rights thereto, can hardly be taken as absolute.¹¹⁴ Privacy may, depending upon context, either promote or undermine the operation of a free democracy.¹¹⁵ Privacy may, especially in this Article's context, effectively promote "deceit and hypocrisy," as well as wrongdoing in general.¹¹⁶ Privacy may protect seriously culpable parties from "taking responsibility for their transgressions."¹¹⁷ And crucially for this Article's purposes, "[t]he right to privacy often stands in the way of vigorous public debate on issues of moral significance."¹¹⁸ To this sensible observation, one can add issues of political and legal significance as well.¹¹⁹ It has thus been well observed that "[w]ithout the shade of privacy many practices which are ... illegal would be ... rationally debated rather than left unexposed and unexamined."¹²⁰

***658** Understandably then, the law often seeks to distinguish between "discreditable and nondiscreditable private information and accords much less [privacy] protection to the former."¹²¹ Certainly, the law should, and often does, extend greater privacy protection to behind-closed-doors sexual practices than to behind-closed-doors business practices--the central focus of this Article's investigative journalism cases.¹²²

IV. WHAT MAKES FOR A CLOSE CASE IN UNDERCOVER INVESTIGATION CONTEXTS?

It is easy to think of extreme cases on both tails of the distribution of investigative journalism cases. At one tail, there are cases in which revelation of socially important truths are exposed, where no other means of uncovering and disseminating such truths is available, and where the undercover investigation was well-planned, well-considered, only trivially invasive, and no more invasive or burdensome on the employer than necessary.¹²³ Imagine, say, an undercover journalist or interest group advocate is hired unwittingly by a politically connected water bottling plant and conducts a simple test, clearly revealing the plant's entire supply of bottled waters are dangerously toxic.

But then, at the other tail of the distribution, there could be a case of speculative and trivial snooping, utterly removed from any significant public issue. The results of this investigation could readily have been obtained with no snooping in any form or by means requiring no direct investigation; but instead, the snooping involved the nonconsensual, indeed explicitly forbidden, filming of an innocent client of the employer in some exceptionally intimate setting. Imagine the nonconsensual filming of some employer or client in their own bathroom, merely to confirm the extent of their already disclosed recent cosmetic surgery.

Many undercover journalistic or interest-group-based investigations will clearly be closer to one of these sets of extreme scenarios than the other and, in particular, much closer to the former tail than to the latter.¹²⁴ But it would still be helpful to develop the best understanding of the cases in which reasonably strong constitutional and policy arguments are available for both the journalist-employee, or some other investigator, and the employer.

***659** One such set of close cases involves the breach of duty by the journalist of some explicit (arguably material) promise or claim made by that journalist to a prospective employer.¹²⁵ Sometimes, resume enhancements by a would-be employee is of only quite modest significance. Perhaps an applicant extends the dates of a previous job to paper over a summer of youthful self-discovery, or where an applicant cared full-time for a seriously ill family member. But then, there is also credential inflation on one's resume that is deemed necessary to gain access as an employee to work responsibilities in which that unqualified employee then endangers fellow employees, customers, or the general public.¹²⁶

Some arguably material and explicit representations made to obtain employment do not raise legal, let alone constitutional, problems. Employees are rarely terminated, let alone sued, for falsely representing as an applicant that the prospective employer was either their clear first choice, that they strongly admired the work done by the firm, or that they sincerely intend to work at the firm for the long term.¹²⁷

But some journalist's representations seem to have greater weight.¹²⁸ Consider a case in which promissory estoppel, fraud, or intentional misrepresentation would seem entirely appropriate to do in other non-journalistic circumstances.¹²⁹ Breach

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of a journalistic promise to a key witness may have serious, utterly undeserved, harmful consequences for the good-faith promisee.¹³⁰ At least in some such cases, such harms may clash with any otherwise unobtainable value in journalistically promoting public discourse or the public well-being.¹³¹

***660** Sometimes, the journalist's breach of promise may lead to an obvious dilemma, with no clear judicial resolution.¹³² Or an undercover investigator, whether a journalist or not, may sign an obviously important, narrow, and specific confidentiality or nondisclosure agreement.¹³³ But then, some other confidentiality or nondisclosure agreements may, in contrast, seem like mere formalistic boilerplates of lesser moral and legal weight.¹³⁴ And in some cases, the employer insisting upon confidentiality or nondisclosure may do so largely from a fear of the revelation of that employer's intentional, sustained, seriously illegal, or tortious conduct.¹³⁵ In such cases, the free speech and public policy interests at stake may clearly outweigh the employer's interest in having their crimes and torts remain unexposed to the continuing prejudice of the public interest.¹³⁶ In all such cases, the employer has the right to expel the undercover journalist.¹³⁷ But a trespass-based right to expel an outsider hardly begins to address the broader constitutional rights and interests at stake in such cases.¹³⁸

Let us simply assume that all misrepresentations, whether explicit or implicit, that are essential to gaining access to an employer's property negate the owner's consent to such access. Again, this could include merely padding one's resume, or falsely declaring one's enthusiasm for the relevant employment, as well as boilerplate employment form box-ticking. But let us simply assume that the employer's consent to entry is thereby invariably negated, making the investigative journalist-employee a trespasser.¹³⁹

***661** On these extreme assumptions, the investigative journalist-employee has committed, if not some sort of fraud, at least the "legally cognizable harm"¹⁴⁰ of trespass to private property.¹⁴¹ Typically, trespass requires a showing of some legally cognizable harm or "damage" to the person who had their property trespassed upon.¹⁴² And to a very rough approximation, false speech that causes any "legally cognizable harm"¹⁴³ may well not be constitutionally protected.¹⁴⁴

And at this point, the legally cognizable harm need not be confined to the investigator's mere physical entry upon the employer's property, or even the investigator's activities while on that property.¹⁴⁵ Instead, one may assume that the legally cognizable harms of the entry upon land may also include any harms stemming from later truthful reporting to a broad audience on matters of public interest and concern.¹⁴⁶

This is not to suggest that the intentions of even good-faith undercover journalists are usually focused entirely on contributing, via speech, to discussions of matters of public interest and concern. Undercover investigators may realistically be concerned as well for their own careers, reputations, political views, and with generating attention and profit for a media outlet or some other organization.¹⁴⁷

***662** But the intention of the investigator, media outlet, or interest group, to gain attention or financial benefit, hardly negates the First Amendment value and any other (otherwise unobtainable) public policy value of the speech in question.¹⁴⁸ Any profit may be used to fund further investigations, research, or the costs of litigation. Newspapers are commonly for-profit enterprises.¹⁴⁹ This hypothetical has assumed throughout that the undercover investigator does not exercise dominion over the employer's property as, for example, an unscrupulous rival, vandal, or saboteur.¹⁵⁰

A judicial inquiry into whether the same information, delivered to the public or other appropriate audience in an equally impactful way, could have been obtained with a substantially reduced trespassory burden on the employer-property owner, will sometimes require speculation.¹⁵¹ Some well-founded, evidently initially justified, investigations may fail, utterly or partially, or they may completely vindicate the employer, perhaps resulting in no speech, in less speech, or in speech that is of public interest only in ways the investigator did not anticipate.¹⁵² In such cases, it should be remembered that the employer, too, is and remains capable of speaking out in their own interest.

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Even more crucial though, is the ordinary assumption that undercover investigations “harm” the employer overall, in some legally decisive sense.¹⁵³ The investigator's speech may indeed result in at least short-term harm to the employer, in terms of lost sales, an impaired public image, or the employer's sheer financial status or viability.¹⁵⁴ But courts should not simply place deserved harms to the employer-enterprise in a balancing pan opposing the pan with free speech and *663 other public interest gains. Had an administrative agency instead fined the employer for the same conduct, the causal responsibility for the harm to the employer would have been placed on the employer for their own culpable conduct, rather than on the agency.

In such cases, avoiding the harms to the employer's business in question should be done, not by declining to impose any official government sanctions on the culpable employer, but by the employer never having intentionally violated the relevant law in the first place. In the undercover investigation cases, there may be ultimate benefit--rather than harm--to a business that is publicly confronted with its own illegal, seriously tortious, or simply controversial practices. It may well be costly for a business to transition away from illegal, tortious, or widely objectionable practices. However, being manipulatively induced by an undercover investigator to comply with the law by necessary means that do not impose gratuitous costs on the enterprise, should normally count as a legal benefit, rather than as a harm.

If, for example, an undercover investigation reveals the production and sale of a tainted or useless product, some form of mistreatment or abuse, or a dangerous production process, the appropriate corporate response is to candidly address the problem, rather than to hunker down and blame the investigative “messenger.” Such an approach brings the otherwise unattained value of corporate compliance with basic health and safety law and perhaps an eventually strengthened corporate public image.¹⁵⁵ And even if the undeserved harms and benefits to the employer remain mixed, any harm may be outweighed by genuine gains to the public,¹⁵⁶ in *664 terms of the basic free speech values and the relevant public health, welfare, safety, and other public interests.¹⁵⁷

In sum, there will be many relatively easy cases, in which a criminal or civil claim against the undercover investigator should either clearly succeed or else clearly fail, based typically on the genuine free speech interests, public interest values, and any substantial personal privacy or property rights at stake.¹⁵⁸ For the inevitable closer cases though, courts should be alert to the alternative courses of action that are at any point realistically available to all of the parties.

Very concretely, for example, a court might thus ask whether remote, non-privacy-invasive drone video footage would not have done just as well as a hidden camera operated by an on-site employee who materially lied to gain entry to the premises; or why a corporate employer felt it necessary to maintain incriminating business records in, say, their own private bedroom; or why an investigator felt it necessary to obtain and disclose client personal identity records of the targeted business; or whether most--or all of--a targeted employer's injuries could have been avoided by the employer's legal compliance by better sensitivity to public concerns, or by a more contrite and less litigious response to a well-founded investigation. Or, finally, and much more generally, a court might ask whether either party could, realistically and at low cost, have avoided much of the cost either to the public interest or to the investigated enterprise. Both parties, ultimately, should thus be properly incentivized, not merely to protect their own self-serving or short-term interests, but to protect the most valuable public and private interests at stake.

*665 V. CONCLUSION

We have thus seen the irresponsibility of an uncritical three-cheers judicial response to clandestine on-site journalistic or interest-group investigations of corporate business practices.¹⁵⁹ In some such cases, genuinely valuable personal privacy rights, and the value of keeping particular sorts of promises, place limits on the nature and scope of such investigations.¹⁶⁰ Overall though, freedom of speech, freedom of the press, and other substantial public interests generally require more than a mere two-cheers judicial response to such investigations. Two and a half judicial cheers may thus seem appropriate. But we have taken the edge off a two and a half cheer judicial response, to encourage journalists and interest groups to exercise all reasonable conscientious care and discretion in targeting, planning, executing, and publicizing the results of their investigative activities.¹⁶¹

Footnotes

- a1 Lawrence A. Jegen III Professor of Law, Indiana University Robert H. McKinney School of Law.
- 1 *See* 60 F.4th 815 (4th Cir. 2023), *cert. denied*, 144 S. Ct. 325 (2023).
- 2 *See id.* at 819.
- 3 *See id.*
- 4 *See id.* at 819, 841.
- 5 Of these, the first and most obvious influence is *Food Lion, Inc. v. Capital Cities/ABC*, 194 F.3d 505 (4th Cir. 1999). For commentary focused specifically on the *Food Lion* case, see, e.g., Jonathan D. Avila, *Food Lion and Beyond: New Developments in the Law of Hidden Cameras*, COMM'NS LAW., Winter 1999; Randall P. Bezanson, *Means and Ends and Food Lion: The Tension Between Exemption and Independence in Newsgathering by the Press*, 47 EMORY L.J. 895 (1998); Cris Carmody, Comment, *Applying a "Persona Test" for Newsgathering Privilege to Food Lion v. Capital Cities/ABC*, 93 NW. U.L. REV. 1287 (1998); Susan M. Gilles, *Food Lion as Reform or Revolution: "Publication Damages" and First Amendment Scrutiny*, 23 U. ARK. LITTLE ROCK L. REV. 37 (2000); Enrique J. Gimenez, *Who Watches the Watchdogs? Newsgathering Torts Against the Media in Light of the Food Lion Reversal*, 52 ALA. L. REV. 675 (2001); Daniel A. Levin & Alan C. Roline, *Undercover Reporters, Tort Law, and the First Amendment: Food Lion v. ABC and the Future of Surreptitious Newsgathering*, 11 KAN. J.L. & PUB. POL'Y 575 (2002).
- 6 *See PETA*, 60 F.4th at 820 (citing N.C. GEN. STAT. § 99A-2(a) (2023)).
- 7 *Id.* (quoting N.C. GEN. STAT. § 99A-2(b)(5) (2023)). Our interests herein extend beyond criminal cases to encompass civil tort and contract cases as well, which may involve sufficient state action to bring the journalist's constitutional rights into play. See, classically, the civil libel case of *New York Times Co. v. Sullivan*, 376 U.S. 254 (1964).
- 8 *See PETA*, 60 F.4th at 820 (alteration in original) (quoting N.C. GEN. STAT. §99A-2(b) (2023)).
- 9 *Id.* (quoting N.C. GEN. STAT. §§ 99A-2(b)(1)-(2) (2023)).
- 10 *Id.* Typically, but not invariably, investigatory journalism avoids entirely person-focused privacy intrusions, eavesdropping, violations of professional privilege, theft or any intent thereof, disruption, pilfering of trade secrets, competitive business intrusions, obtaining of client lists, entry into homes, demonstrations or other distracting occupying of property, or other violations of the crucial incidents of property ownership. *See* *Desnick v. ABC, Inc.*, 44 F.3d 1345, 1352-53 (7th Cir. 1995); *Am. Transmissions, Inc. v. Channel 7 of Detroit*, 609 N.W.2d 607, 613-14 (Mich. Ct. App. 2000).
- 11 *See PETA*, 60 F.4th at 822.

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- 12 *See, e.g., id.*
- 13 *See id.* at 822-23. Traditionally protected categories of speech are shown in many other cases. *See, e.g.,* United States v. Alvarez, 567 U.S. 709, 717-18 (2012) (plurality opinion) (protecting false speech); Bailey v. Iles, 87 F.4th 275, 282 (5th Cir. 2023); Friend v. Gasparino, 61 F.4th 77, 87-88 (2d Cir. 2023) (rejecting the argument that a social media post, which alleged false news, counted as incitement or a true threat).
- 14 *See PETA*, 60 F.4th at 823.
- 15 *See id.* at 822.
- 16 *See* 505 U.S. 377, 396.
- 17 *See id.* (determining that while burning a cross is reprehensible, there are means aside from the First Amendment to prevent such behavior).
- 18 *See, e.g.,* Ward v. Rock Against Racism, 491 U.S. 781, 803 (1989); Kovacs v. Cooper, 336 U.S. 77, 87 (1949).
- 19 *See Ward*, 491 U.S. at 798-99.
- 20 *PETA*, 60 F.4th at 823.
- 21 *Id.* at 824.
- 22 *See id.* at 823. As developed below, it is possible to violate what the law may take to be one's duty of loyalty to an employer by speech that substantially promotes the long-term legal interests, the public image, and the ability interests of that employer. *See infra* notes 71-83 and accompanying text. Thus, it is certainly possible to violate one's duty of loyalty to one's employer by speaking entirely favorably of one's employer and promoting their interests.
- 23 *See infra* Parts III-IV.
- 24 *See infra* Parts III-IV; *see also* Nat'l Press Photographers Ass'n v. McCraw, 90 F.4th 770 (5th Cir. 2024) (balancing free press and privacy interests).
- 25 *See PETA*, 60 F.4th at 825-26 (citing Cohen v. Cowles Media Co., 501 U.S. 663, 669 (1991) (promissory estoppel case)).
- 26 *See id.* at 826.
- 27 *Id.* at 825 (citing *Cowles*, 501 U.S. at 669).
- 28 *Id.* (citing *Cowles*, 501 U.S. at 669).

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- 29 *Id.* (citing *Cowles*, 501 U.S. at 669); *see also* *Zurcher v. Stanford Daily*, 436 U.S. 547, 565 (1978), *superseded by* Privacy Protection Act, 42 U.S.C. § 2000aa (noting that a student newspaper was still subject to subpoenas).
- 30 *See PETA*, 60 F.4th at 825-26 (citing several cases supporting the proposition that the First Amendment may protect free speech despite laws that seek to criminalize it).
- 31 *See, e.g.*, *Cohen v. California*, 403 U.S. 15, 21 (1971) (“[T]he State might therefore legitimately act as it did in order to protect the sensitive from otherwise unavoidable exposure to appellant’s crude form of protest.”); *see also id.* at 826 (discussing case law concerning laws of general applicability in relation to freedom of speech).
- 32 *See NAACP v. Claiborne Hardware Co.*, 458 U.S. 886, 909-10 (1982); *Cohen*, 403 U.S. at 16, 26; *Cantwell v. Connecticut*, 310 U.S. 296, 308-09 (1940).
- 33 *See PETA*, 60 F.4th at 828 (discussing the applicability of First Amendment defenses in tort cases); *see also* *Snyder v. Phelps*, 562 U.S. 443, 451 (2011) (“The Free Speech Clause of the First Amendment--‘Congress shall make no law ... abridging the freedom of speech’--can serve as a defense in state tort suits, including suits for intentional infliction of emotional distress.”).
- 34 *See PETA*, 60 F.4th at 828-29.
- 35 *Cf. id.* at 826 (discussing and citing several cases where conduct may be targeted but speech cannot be).
- 36 *See id.* at 829 (“[T]he right to publish a recording would be “largely ineffective, if the antecedent act of making the recording is wholly unprotected.”) (quoting *ACLU of Ill. v. Alvarez*, 679 F.3d 583, 595 (7th Cir. 2012)).
- 37 *See id.* In the realm of science fiction, mandatory exposure to a device that erases memories of events or information deemed inappropriate by the government would violate, among other rights, the right to freedom of speech. For background, *see*, memorably, the movie *MEN IN BLACK* (Columbia Pictures 1997).
- 38 *Cf. PETA*, 60 F.4th at 829. Prohibiting rough drafts would naturally go toward the beginning of the actual speech process and memory erasures toward the end.
- 39 *See id.* (citing *Sorrell v. IMS Health, Inc.*, 564 U.S. 552, 570 (2011)); *see, e.g.*, *ACLU of Ill.*, 679 F.3d at 595; *Citizens United v. FEC*, 558 U.S. 310, 339 (2010); *McConnell v. FEC*, 540 U.S. 93, 252 (2003) (Scalia, J., concurring in part and dissenting in part); *Fields v. City of Phila.*, 862 F.3d 353, 358 (3d Cir. 2017) (citing cases that discuss the protection worthiness of the creation of photographs and videos); *Turner v. Lieutenant Driver*, 848 F.3d 678, 689 (5th Cir. 2017); *Buehrle v. City of Key West*, 813 F.3d 973, 977 (11th Cir. 2011); *Desnick v. ABC, Inc.*, 44 F.3d 1345, 1355 (7th Cir. 1995).
- 40 *See PETA*, 60 F.4th at 829 (citing *Buehrle*, 813 F.3d at 977; *W. Watersheds Proj. v. Michael*, 869 F.3d 1189, 1195-96 (10th Cir. 2017)). By loose analogy, protecting any meaningful constitutional right to vote in an election would require attention to any unreasonable government obstacles, or any undue burdens, to informing oneself on the candidates and their policies. *See Anderson v. Celebrezze*, 460 U.S. 780, 793 (1983); *One Wis. Inst., Inc. v. Thomsen*, 490 F. Supp. 3d 1338, 1342 (W.D. Wis. 2020).

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- 41 *See PETA*, 60 F.4th at 829.
- 42 *See id.* (“It is this ‘depth of ... exploration,’ that brings reporting to life, demanding our attention and allowing us to appreciate the full scope of the societal issues related.”) (internal citation omitted).
- 43 Consider the adequacy, or the inadequacy, of the overall process of pursuing a libel action. *See generally* Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc., 472 U.S. 749 (1985) (plurality opinion) (illustrating the fragmented approaches to libel cases).
- 44 *See* EZRA KLEIN, WHY WE’RE POLARIZED 1 (2021); KEVIN VALLIER, TRUST IN A POLARIZED AGE 1 (2020).
- 45 *See, e.g.*, Bloomberg, *It's Getting Harder to Spot a Deep Fake Video*, YOUTUBE (Sept. 27, 2018), <https://youtu.be/gLoI9hAX9dw?si=qtWUxgGj6CZTjpFR> [<https://perma.cc/HQ5N-38YQ>]. Note that the technology depicted therein was as of 2018.
- 46 *See id.*; Shannon Bond, *AI-Generated Deepfakes Are Moving Fast. Policymakers Can't Keep Up*, NPR, www.npr.org/2023/04/27/1172387911/how-people-can-spot-fake-images-created-by-artificial-intelligence [<https://perma.cc/V4W8-Q6B8>] (Apr. 27, 2023, 6:11 PM).
- 47 *See* EDWARD BERNAYS, PROPAGANDA (Liveright Publ'g Corp. 1928); *see also* JACQUES ELLUL, PROPAGANDA: THE FORMATION OF MEN'S ATTITUDES (Konrad Kellen & Jean Lerner trans., Vintage Books 1973) (1962).
- 48 *See* Amos Tversky & Daniel Kahneman, *Judgment Under Uncertainty: Heuristics and Biases*, 185 SCIENCE 1124 (1974).
- 49 *See, e.g.*, Roderick Firth, *Ethical Absolutism and the Ideal Observer*, 12 PHIL. & PHENOMENOLOGICAL RSCH. 317 (1952).
- 50 *See* Phila. Newspapers, Inc. v. Hepps, 475 U.S. 767, 769-711, 776 (1986).
- 51 *See id.* at 775-76 (providing examples of judicial recognition of this distinction between speech on matters of public interest versus merely matters of private or personal concern); Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc., 472 U.S. 749, 758-62 (1985) (plurality opinion); *see, e.g.*, Garcetti v. Ceballos, 547 U.S. 410, 417-19 (2006) (providing context regarding public employment and speech made as a public employee); Rankin v. McPherson, 483 U.S. 378, 385-88 (1987) (analyzing whether speech by a public employee said in private to another employee is considered public speech).
- 52 The point of this distinction is precisely to identify speech that is generally worthy of greater, or lesser, constitutional protection. *See* R. George Wright, *Cyber Harassment and the Scope of Freedom of Speech*, 53 U.C. DAVIS L. REV. ONLINE 187, 197 (2020).
- 53 *See* THOMAS I. EMERSON, THE SYSTEM OF FREEDOM OF EXPRESSION 6-7 (Random House N.Y. 1970); Kent Greenawalt, *Free Speech Justifications*, 89 COLUM. L. REV. 119, 130-47 (1989); Frederick Schauer, *Free Speech, the*

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Search for Truth, and the Problem of Collective Knowledge, 70 SMU L. REV. 231, 231-32 (2017); Steven D. Smith, *Skepticism, Tolerance, and Truth in the Theory of Free Expression*, 60 S. CAL. L. REV. 649, 652 (1987).

- 54 See Jack M. Balkin, *Cultural Democracy and the First Amendment*, 110 NW. U. L. REV. 1053, 1063 (2016); Robert Post, *Participatory Democracy and Free Speech*, 97 VA. L. REV. 477, 482 (2011); Alexander Tsesis, *Free Speech Constitutionalism*, 2015 U. ILL. L. REV. 1015, 1016 (2015).
- 55 See Balkin, *supra* note 54, at 1077.
- 56 See *supra* notes 49-55 and accompanying text.
- 57 See *PETA v. N.C. Farm Bureau Fed'n, Inc.*, 60 F.4th 815, 831-33 (4th Cir. 2023), *cert denied*, 144 S. Ct. 325 (2023).
- 58 See *id.* at 820.
- 59 See *id.* at 831-33 (demonstrating the First Amendment concerns under North Carolina statute also implicated privacy and property interests).
- 60 See *infra* Parts III-IV.
- 61 See *PETA*, 60 F.4th 815, 829 (applying strict scrutiny to a statute specifically forbidding employees from recording private employer areas with intent to publish because that intent to publish would breach a duty of loyalty to an employer); *cf.* *Food Lion, Inc. v. Capital Cities/ABC, Inc.*, 194 F.3d 505, 516 (4th Cir. 1999) (holding employees liable after breaching their duty of loyalty to the employer by recording private employer areas).
- 62 See RESTATEMENT (SECOND) OF EMP. LAW § 8.01(c) (AM. L. INST. 2015) (“The employee's duty of loyalty must be interpreted in a manner consistent with the employee's rights ... and under employment and other law.”).
- 63 See, e.g., *Food Lion, Inc.*, 194 F.3d 505, 516 (finding breach of loyalty where employees published surveillance of unsafe food handling practices without considering if such action was truly adverse, in a broader, cosmic sense, to the employer).
- 64 See VIRGINIA HELD, THE PUBLIC INTEREST AND INDIVIDUAL INTERESTS 147-48 (Basic Books, Inc. 1970); see also DAVID HOLLEY, SELF-INTEREST AND BEYOND (Paragon House 1999); R.G. Frey, *Rights, Interests, Desires, and Beliefs*, 16 AM. PHIL. Q. 233, 234-35 (1979).
- 65 See generally Gerald Dworkin, *Paternalism*, STAN. ENCYCLOPEDIA OF PHIL., <https://plato.stanford.edu/entries/paternalism/> [<https://perma.cc/UTR7-QF6K>] (Sept. 9, 2020) (“But if we conceive of the good of individuals as including items such as being respected as an independent agent, having a right to make decisions for oneself, or having one's autonomy not infringed, then the issue of whether the agent is better off after being paternalised is partly a normative matter.”); JOHN STUART MILL, ON LIBERTY (Gertrude Himmelfarb ed., Penguin Classics 1974) (1859) (classic rejection of most paternalism); see, e.g., SARAH CONLY, AGAINST AUTONOMY: JUSTIFYING COERCIVE PATERNALISM (Cambridge Univ. Press 2013) (discussing contemporary defenses of some forms of relatively strong

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paternalism); JASON HANNA, IN OUR BEST INTEREST: A DEFENSE OF PATERNALISM (Oxford Univ. Press 2018).

66 See *supra* notes 63-65 and accompanying text.

67 See *supra* notes 63-65 and accompanying text.

68 See *infra* note 72 and accompanying text.

69 See *Midas*, THEOI (2017), <https://www.theoi.com/Heros/Midas.html> [<https://perma.cc/NPR7-FNY6>]. See also any literary treatment of Mephistopheles' faithful, loyal, scrupulous carrying out of the legendary Faust's expressed desires. See, e.g., JOHN KENDRICK BANGS, MEPHISTOPHELES: A PROFANATION 13-44 (N.Y. Gillis Bros. & Turnure Art Age Press, 1889).

70 See FREDERIC BASTIAT, WHAT IS SEEN AND WHAT IS NOT SEEN (1850), *reprinted in* SELECTED ESSAYS ON THE POLITICAL ECONOMY (George B. de Huszar, ed., Seymour Cain, trans., Irving-on-Hudson 1995). For ease of access, an online text is available at <https://www.econlib.org/library/Bastiat/basEss.html> [<https://perma.cc/L9ZQ-STWD>].

71 See MATTHEW KRAMER ET AL., A DEBATE OVER RIGHTS: PHILOSOPHICAL INQUIRIES, ch. 1 (Clarendon Press 1998); Matthew Kramer, *Some Doubts About Alternatives to the Interest Theory*, 123 ETHICS 245 (2013); Visa A.J. Kurki, *Rights, Harming, and Wrongdoing: A Restatement of the Interest Theory*, 38 OXFORD J. LEGAL STUD. 430 (2018); Visa A.J. Kurki, *The Interest Theory of Rights: Still Standing*, 27 LEGAL THEORY 352 (2021); Mark McBride, *Preserving the Interest Theory of Rights*, 26 LEGAL THEORY 3 (2020) (providing a nuanced view).

72 See, e.g., Michelle No, *Animal Rights Groups Target Laws That Penalize Unauthorized Workplace Videos*, ABA J. (Apr. 1, 2024, 12:50 AM), <https://www.abajournal.com/magazine/article/catching-cruelty-animal-rights-groups-target-laws-that-penalize-unauthorized-workplace-videos-with-some-success>.

73 See *PETA v. N.C. Farm Bureau Fed'n, Inc.*, 60 F.4th 815, 836 (4th Cir. 2023), *cert denied*, 144 S. Ct. 325. (2023) (citing *Miller v. Brooks*, 472 S.E.2d 350, 354 (N.C. Ct. App. 1996)) (finding that any free speech claims are subordinated, if not absent, where the defendants placed a hidden camera in the plaintiff's bedroom and recorded him "undressing, showering, and going to bed"). Consider also the risk of disclosure of the identities of patients undergoing medical procedures. See *generally* *Planned Parenthood Fed'n v. Newman*, 51 F.4th 1125, 1130-31 (9th Cir. 2022), *cert. denied*, 144 S. Ct. 263 (2023) (discussing how a pro-life activist infiltrated Planned Parenthood to record the procuring of fetal tissue and publish the undercover videos).

74 See *PETA*, 60 F.4th at 836 (discussing a hypothetical of placing hidden camera in the CEO's bedroom); *Planned Parenthood Fed'n*, 51 F.4th at 1130-31 (infiltrating Planned Parenthood conferences by pro-life groups by conducting an undercover operation); see also No, *supra* note 72.

75 See *PETA*, 60 F.4th at 838 (citing statutory protections for the safety of persons who are mentally ill, farmworkers, and workers in general).

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- 76 See RocketStock, *Techniques for Protecting Anonymity in Videos*, POND5 (Feb. 12, 2016), <https://blog.pond5.com/14067-how-to-protect-anonymity-in-videos/> [<https://perma.cc/3YPN-7Y2N>].
- 77 See *PETA*, 60 F.4th at 841 (Rushing, J., dissenting).
- 78 See *id.* at 844.
- 79 See *id.*; Alan K. Chen, *Investigative Deception Across Social Contexts*, 22-14 KNIGHT FIRST AMEND. INST. (Dec. 16, 2022), <https://knightcolumbia.org/content/investigative-deception-across-social-contexts> [<https://perma.cc/WUK3-QVXW>].
- 80 See *PETA*, 60 F.4th at 844; *Med. Lab'y Mgmt. Consultants v. ABC, Inc.*, 30 F. Supp. 2d 1182, 1203 (D. Ariz. 1998), *aff'd*, 306 F.3d 806 (9th Cir. 2002); see also *Desnick v. ABC, Inc.*, 44 F.3d 1345, 1353-54 (7th Cir. 1995) (making no distinction between public and nonpublic areas of a business).
- 81 See *supra* notes 61-75 and accompanying text.
- 82 See *PETA*, 60 F.4th at 845-46 (Rushing, J., dissenting).
- 83 See *id.* at 847-48 (arguing against PETA's facial challenge to the law because there are constitutional applications of the law--e.g., theft, sabotage, and various illegal competitor practices).
- 84 See *id.* One familiar, if problematic, way of depicting some of the basic conflicts refers to “finding a balance between two fervently protected fundamental rights in competition: the right of the individual to be left alone and the right of society to access information of public interest.” *Med. Lab'y Mgmt.*, 30 F. Supp. at 1186. The typical undercover investigation does not implicate any personal right “to be left alone” in the classic sense. Compare *id.*, with Samuel D. Warren & Louis D. Brandeis, *The Right to Privacy*, 4 HARV. L. REV. 193, 193-97 (1890) (detailing the foundational defense of a personal privacy-based right).
- 85 David L. Callies & J. David Breemer, *The Right to Exclude Others from Private Property: A Fundamental Constitutional Right*, 3 WASH. U. J.L. & POL'Y 39, 39-40 (2000); see JEREMY WALDRON, *PROPERTY LAW, IN A COMPANION TO PHILOSOPHY OF LAW AND LEGAL THEORY* 7, 10-11 (Dennis Patterson ed., 2010).
- 86 2 WILLIAM BLACKSTONE, *COMMENTARIES* 2 (Clarendon Press 1767).
- 87 See WALDRON, *supra* note 85, at 19.
- 88 Lawrence C. Becker, *The Moral Basis for Property Rights*, in *NOMOS XXII: PROPERTY* 187, 193 (J. Roland Pennock & John W. Chapman eds., 1980).
- 89 See *Newman v. Sathyavaglswaran*, 287 F.3d 786, 798 (9th Cir. 2002).

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- 90 *See, e.g., id.*; *State v. Shack*, 277 A.2d 369, 372 (N.J. 1971); *Stewart v. Green*, 300 So. 2d 889, 893 (Fla. 1974).
- 91 *Newman*, 287 F.3d at 798 (alteration in original) (quoting *Shack*, 277 A.2d at 372). At bottom, property rights are thus purposive, rather than justifiable without reference to any purposes or limits thereof, or to alternative property regimes and the fulfillment of human purposes in general. *See Stewart*, 300 So. 2d at 893; *Ingram v. Borough of Fort Lee*, 293 A.2d 720, 739 (N.J. Super. Ct. Law Div. 1972), *aff'd*, 303 A.2d 298 (N.J. 1973); Gregory S. Alexander, *The Human Flourishing Theory* pt. 1 (Cornell L. Sch., Working Paper No. 20-02, 2020), <https://ssrn.com/abstract=3536381> [<https://perma.cc/3YD4-FHEK>] (noting the limits of the value of autonomous individual action); Gregory S. Alexander, *Property, Dignity, and Human Flourishing*, 104 CORNELL L. REV. 991, 1017 (2019).
- 92 *See Stewart*, 300 So. 2d at 893; *Ingram*, 293 A.2d at 739.
- 93 *See* GREGORY S. ALEXANDER & EDUARDO M. PENALVER, AN INTRODUCTION TO PROPERTY THEORY 149 (Cambridge Univ. Press 2012).
- 94 *See* Joseph William Singer, *Property as the Law of Democracy*, 63 DUKE L.J. 1287, 1324 (2014).
- 95 *Id.*
- 96 Or, presumably, increase freedom as well.
- 97 Singer, *supra* note 94, at 1324.
- 98 *Id.*
- 99 *See, e.g.,* Joan Williams, *The Rhetoric of Property*, 83 IOWA L. REV. 277, 345 (1998).
- 100 *See id.*
- 101 *See* William L. Prosser, *Privacy*, 48 CAL. L. REV. 383, 389 (1960); Warren & Brandeis, *supra* note 84, at 193-94.
- 102 *See, e.g.,* *PETA v. N.C. Farm Bureau Fed'n, Inc.*, 60 F.4th 815, 826 (4th Cir. 2023), *cert denied*, 144 S. Ct. 325 (2023); *Counterman v. Colorado*, 600 U.S. 66, 69 (2023).
- 103 *See* Judith Jarvis Thomson, *The Right to Privacy*, 4 PHIL. & PUB. AFF. 295, 295 (1975) (“Perhaps the most striking thing about the right to privacy is that nobody seems to have any very clear idea what it is.”); H. J. McCloskey, *Privacy and the Right to Privacy*, 55 PHIL. 17, 17-18 (1980) (discussing the distinction between privacy and a moral or legal right to privacy). For a case law approach into thinking about the scope and limits of on-premises or off-premises incursions into privacy rights, see, for example, *Nat'l Press Photographers Ass'n v. McCraw*, 84 F.4th 632, 651-52 (5th Cir. 2023). In *McCraw*, the Fifth Circuit, choosing to apply an intermediate level scrutiny test involving a presumed balancing of the relevant rights and interests, rejected a facial challenge by the press to state statutory limits on drone surveillance of a range of private properties. *Id.*

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- 104 See Jeffrey H. Reiman, *Privacy, Intimacy, and Personhood*, 6 PHIL. & PUB. AFF. 26, 44 (1976).
- 105 See *id.*
- 106 See *id.* at 41-43.
- 107 *Id.* at 44.
- 108 W.A. Parent, *A New Definition of Privacy for the Law*, 2 L. & PHIL. 305, 306 (1983); W.A. Parent, *Privacy, Morality, and the Law*, 12 PHIL. & PUB. AFF. 269, 269 (1983) (“Privacy is the condition of not having undocumented personal knowledge about one possessed by others.”); see also James Rachels, *Why Privacy Is Important*, 4 PHIL. & PUB. AFF. 323, 326 (1975) (“[T]here is a close connection between our ability to control who has access to us and to information about us, and our ability to create and maintain different sorts of social relationships with different people.”). Subject, presumably, to some appropriate consent or waiver condition.
- 109 Steve Matthews, *Privacy, Separation, and Control*, 91 THE MONIST 130, 130 (2008).
- 110 H. Tristram Englehart, Jr., *Privacy and Limited Democracy: The Moral Centrality of Persons*, 40 SOC. PHIL. & POL’Y 120, 123 (2000); see also Edward J. Bloustein, *Privacy as an Aspect of Human Dignity: An Answer to Dean Prosser*, 39 N.Y.U L. REV. 962, 984 (1964).
- 111 See McCloskey, *supra* note 103, at 19, 38.
- 112 See W.A. Parent, *Recent Work on the Concept of Privacy*, 20 AM. PHIL. Q. 341, 347-50 (1983). Thus, at a minimum, not all personal or intimacy-related information about an individual, which has been obtained and publicized, will be considered obtained and publicized “unjustly or wrongly.” See *id.* at 350.
- 113 See Judith Wagner DeCew, *The Scope of Privacy in Law and Ethics*, 5 L. & PHIL. 145, 146 (1986).
- 114 See Joseph Kupfer, *Privacy, Autonomy, and Self-Concept*, 24 AM. PHIL. Q. 81, 81 (1987) (“Surely privacy does not require absolute control over all the things that can be construed as ‘about’ the self.”).
- 115 See NEIL RICHARDS, WHY PRIVACY MATTERS 7-8 (Oxford Univ. Press 2022).
- 116 Ferdinand Schoeman, *Privacy: Philosophical Dimensions*, 21 AM. PHIL. Q. 199, 199 (1984).
- 117 *Id.*
- 118 *Id.*
- 119 See *id.* at 201.

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- 120 *Id.* at 199.
- 121 Richard A. Posner, *The Right of Privacy*, 12 GA. L. REV. 393, 418 (1978).
- 122 *See, e.g.*, *Lawrence v. Texas*, 539 U.S. 558, 578 (2003); *Griswold v. Connecticut*, 381 U.S. 479, 498-99 (1965) (Goldberg, J., concurring); Mark Tushnet, *Legal Conventionalism in the U.S. Constitutional Law of Privacy*, 17 SOC. PHIL. & POL'Y 141, 145 (2000).
- 123 *See* Chen, *supra* note 79, at 3-6.
- 124 *See* Levin & Roline, *supra* note 5, at 589 n.142.
- 125 *See, e.g.*, *Food Lion, Inc. v. Cap. Cities/ABC*, 194 F.3d 505, 510 (4th Cir. 1999).
- 126 For example, imagine an undercover journalist in a nuclear power plant who does not even minimally understand the crucial knowledge of how to prevent, say, radiation leakage.
- 127 *See* Jack Kelly, *The Truth About Everyone Lying in the Interview Process*, FORBES (Feb. 15, 2021, 6:30 PM), <https://www.forbes.com/sites/jackkelly/2021/02/15/the-truth-about-everyone-lying-in-the-interview-process/>. It would be an oversimplification to say that no reasonable employer ever takes any such representations to be sincere or treats them as a significant element in the hiring process.
- 128 *See, e.g.*, *Cohen v. Cowles Media Co.*, 501 U.S. 663, 670-71 (1991) (holding the Minnesota Supreme Court erred in dismissing a promissory estoppel cause of action against a journalist based on the journalist's explicit promise to not disclose the identity of a news source).
- 129 *See id.* at 670-72 (involving an explicit journalistic promise not to disclose the identity of a news source).
- 130 *See id.*
- 131 *See* Chen, *supra* note 79, at 1-2.
- 132 *See, e.g.*, *Veilleux v. NBC*, 206 F.3d 92, 103-05 (1st Cir. 2000) (noting the time frame of events in a long-haul trucking investigation case).
- 133 *See, e.g.*, *Planned Parenthood Fed'n v. Newman*, 51 F.4th 1125, 1131 (9th Cir. 2022), *cert. denied*, 144 S. Ct. 263 (2023).
- 134 *See generally* MARGARET JANE RADIN, *BOILERPLATE: THE FINE PRINT, VANISHING RIGHTS, AND THE RULE OF LAW* (2014).

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- 135 See Carol M. Bast, *At What Price Silence: Are Confidentiality Agreements Enforceable?*, 25 WM. MITCHELL L. REV. 627, 628 (1999) (“A confidentiality agreement purporting to cover public health or safety risks or illegal acts may satisfy the employer’s needs, but not the needs of the employee nor the needs of society.”).
- 136 See, e.g., *Desnick v. ABC, Inc.*, 44 F.3d 1345, 1353-54 (7th Cir. 1995) (noting the mildly adverse impact on the public interest in the cataract surgery case).
- 137 See, e.g., *Animal Legal Def. Fund v. Herbert*, 263 F. Supp. 3d 1193, 1209 (D. Utah 2017) (“Nobody disputes that owners of an agricultural facility can immediately remove from the property any person speaking in ways the owners find objectionable.”). Similar logic would apply, of course, to any person without some countervailing right or privilege to be on private property in general. See, e.g., *Cedar Point Nursery v. Hassid*, 594 U.S. 139, 143-45 (2021).
- 138 See *Herbert*, 263 F. Supp. 3d at 1209.
- 139 See, e.g., *id.* at 1202-03.
- 140 *Animal Legal Def. Fund v. Reynolds*, 8 F.4th 781, 785-86 (8th Cir. 2021). But see Chen, *supra* note 79, at 19 (“[A] person who takes one step onto another’s property without consent commits a trespass even if not one blade of grass is disturbed.”).
- 141 See, e.g., *Keyzer v. Amerlink, Ltd.*, 618 S.E.2d 768, 772 (N.C. Ct. App. 2005) (quoting *Broughton v. McClatchy Newspapers, Inc.*, 588 S.E.2d 20, 29 (N.C. Ct. App. 2003)).
- 142 See *id.*; see also *Animal Legal Def. Fund v. Kelly*, 9 F.4th 1219, 1232 (10th Cir. 2021) (relying on the partly fragmented opinions in the *Stolen Valor* Act case of *United States v. Alvarez*, 567 U.S. 709, 719 (2012), in which the lying claim of receiving a Medal of Honor from Congress involved no legally cognizable benefit).
- 143 *Kelly*, 9 F.4th at 1232. For a critical response to *Alvarez*, see R. George Wright, ‘*What Is That Honor?*’: *Re-Thinking Free Speech in the “Stolen Valor” Case*, 60 CLEV. ST. L. REV. 847, 856-61 (2012).
- 144 Contrast instances in which the resume padder misrepresents their credentials largely, if not exclusively, simply to gain remunerative employment, typically focusing on salary and job benefits such as health insurance. See, e.g., *Reynolds*, 591 F. Supp. 3d at 405 (discussing the plurality opinion of Justice Anthony Kennedy in *Alvarez*, 567 U.S. at 723).
- 145 See Chen, *supra* note 79, at 17-18.
- 146 See *id.* at 24.
- 147 See *303 Creative LLC v. Elenis*, 600 U.S. 570, 594 (2023) (“Many of the world’s great works of literature and art were created with an expectation of compensation.”) (citing *Simon & Schuster, Inc. v. Members of N.Y. State Crime Victims Bd.*, 502 U.S. 105, 114-16 (1991)); *Murdock v. Pennsylvania*, 319 U.S. 105, 111 (1943); *In re Elster*, 26 F.4th 1328, 1333 (Fed. Cir. 2022), *rev’d*, 602 U.S. 286 (2024), *vacated*, No. 2020-2205, 2024 WL 3530200 (Fed. Cir. July 25, 2024).

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- 148 See, e.g., *In re Elster*, 26 F.4th at 1333 (citations omitted).
- 149 See *Newspaper Fact Sheet*, PEW RSCH. CTR. (Nov. 10, 2023), <https://www.pewresearch.org/journalism/fact-sheet/newspapers/> [<https://perma.cc/DXE5-GGCV>] (discussing the economics of the newspaper industry).
- 150 Contrast this with the sorts of competitive and other injuries contemplated in *Animal Legal Def. Fund v. Wasden*, 878 F.3d 1184, 1199-1200 (9th Cir. 2018). For extensive discussion of *Wasden* on context-based regulations of speech, see *Proj. Veritas v. Schmidt*, 72 F.4th 1043, 1056-57 (9th Cir. 2023), *vacated*, 95 F.4th 1152 (9th Cir. 2024).
- 151 For thoughtful discussion, see Lyrissa Barnett Lidsky, *Prying, Spying, and Lying: Intrusive Newsgathering and What the Law Should Do About It*, 73 TULANE L. REV. 173, 243-46 (1998).
- 152 See *id.* at 232-33.
- 153 See Avila, *supra* note 5, at 21-22.
- 154 See Lidsky, *supra* note 151, at 231-32 (highlighting the exposing of businesses done by undercover investigation which can, in turn, lead to short-term harms).
- 155 By loose analogy, see the constructive, and indeed astute, response taken by Johnson & Johnson in the 1982 Tylenol Scare. For discussion, see, for example, *Crisis Communication Strategies*, DEPT. OF DEF. <https://www.ou.edu/deptcomm/dodjcc/groups/02C2/Johnson&Johnson.htm> [<https://perma.cc/2RB7-SE2J>]. More broadly, see Alice M. Tybout & Michelle Roehm, *Let the Response Fit the Scandal*, HARV. BUS. REV. (Dec. 2009), <https://hbr.org/2009/12/let-the-response-fit-the-scandal>; Nic Carrington & Madeleine Rebsamen, *Responding to Fraud: Doing Nothing Is Not an Option*, DELOITTE, <https://www2.deloitte.com/ch/en/pages/financial-advisory/articles/responding-to-fraud-doing-nothing-is-not-an-option.html> [<https://perma.cc/LW4C-UUQK>]; Shannon Roddel, *Firms Address Corporate Scandal with Lengthy Codes of Ethics, Study Shows*, U. NOTRE DAME (Sept. 11, 2023), <https://news.nd.edu/news/firms-address-corporate-scandal-with-lengthy-codes-of-ethics-study-shows/> [<https://perma.cc/H7NW-PKU9>].
- 156 We again set aside cases of plainly unnecessary, trivial, poorly conceived, or wildly overbroad intrusions, as when “the undercover activities of journalists seem designed to gather sensational tidbits of information that have little public service value.” Anthony L. Fargo & Laurence B. Alexander, *Testing the Boundaries of the First Amendment Press Clause: A Proposal for Protecting the Media from Newsgathering Torts*, 32 HARV. J. L. & PUB. POL’Y 1093, 1150 (2009).
- 157 Distinguishing between investigators who intend some harm to the investigated target and those who do not intend any harm raises more legal questions than it resolves. Courts may often presume that investigators intend the natural and probable harmful consequences of their investigation. And then there is the problem that statutorily prohibiting only intentionally damaging investigations may raise more viewpoint-bias constitutional problems than a broader, far less narrowly tailored regulation that prohibits all undercover investigations, including those clearly intending the ultimate benefit of the target of the investigation. For a sense of this free speech narrow-versus-broad regulatory scope paradox, see, for example, *Barnes v. Glen Theatre, Inc.*, 501 U.S. 560 (1991) (rewarding, in effect, the sheer lack of a narrow regulatory scope of the public nudity ordinance in question).

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158 *See* Lidsky, *supra* note 151, at 232-34 (discussing justified versus unjustified invasions of privacy based on the public interest served); *Desnick v. ABC, Inc.*, 44 F.3d 1345, 1353 (7th Cir. 1995) (finding no violation of law where no legally protected privacy or property interest has been invaded); Chen, *supra* note 79, at 14.

159 *See supra* Parts III-IV.

160 *See* PETA v. N.C. Farm Bureau Fed'n, Inc., 60 F.4th 815, 833 (4th Cir. 2023), *cert. denied*, 144 S. Ct. 325 (2023).

161 *See supra* Parts III-IV.

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